

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #16	CCRB Case #: 202305385	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/29/2023 1:11 AM	Location of Incident: Mother Gaston Boulevard and Belmont Avenue	18 Mo. SOL 9/29/2024	Precinct: 73		
Date/Time CV Reported Tue, 06/13/2023 10:00 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Tue, 06/13/2023 12:06 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Karl Hanisch	00454	952825	073 PCT
2. PO Melanie Obrien	13078	971586	073 PCT
3. PO Pedro Martinezgarcia	30200	973578	073 PCT
4. PO Tiery Samuels	01201	942497	073 PCT
5. PO Jeffrey Koncelik	11991	948735	073 PCT
6. PO Hernan Mendoza	26330	945998	073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Ugur Orhan	02484	964686	073 PCT
2. PO Jason Osullivan	08740	966745	073 PCT
3. PO James Hamilton	12176	954911	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Karl Hanisch	Abuse: Sergeant Karl Hanisch stopped the vehicle in which § 87(2)(b) was an occupant.	
B . PO Melanie Obrien	Abuse: Police Officer Melanie Obrien searched the vehicle in which § 87(2)(b) was an occupant.	
C . SGT Karl Hanisch	Abuse: Sergeant Karl Hanisch failed to provide § 87(2)(b) with a business card.	
D . PO Jeffrey Koncelik	Abuse: Police Officer Jeffrey Koncelik failed to provide § 87(2)(b) with a business card.	
E . PO Hernan Mendoza	Abuse: Police Officer Hernan Mendoza failed to provide § 87(2)(b) with a business card.	
F . PO Pedro Martinezgarcia	Abuse: Police Officer Pedro Martinezgarcia failed to provide § 87(2)(b) with a business card.	
G . PO Tiery Samuels	Abuse: Police Officer Tiery Samuels failed to provide § 87(2)(b) with a business card.	

Case Summary

On June 13, 2023, § 87(2)(b) filed the following complaint in person at the 73rd Precinct stationhouse. The CCRB received the complaint on the same day.

On March 29, 2023, at approximately 1:11 a.m., at the intersection of Mother Gaston Boulevard and Belmont Avenue in Brooklyn, officers stopped § 87(2)(b)'s vehicle as part of a vehicle safety checkpoint (**Allegation A: Abuse of Authority, § 87(2)(g)**). Sgt. Karl Hanisch, PO Melanie Obrien, PO Pedro Martinezgarcia, PO Tiery Samuels, PO Jeffery Koncelik, and PO Hernan Mendoza, all of the 73rd Precinct, were on scene.

§ 87(2)(b) refused to provide his license and Sgt. Hanisch had him removed to the 73rd Precinct stationhouse. On scene, PO Obrien searched § 87(2)(b)'s vehicle for his license (**Allegation B: Abuse of Authority, § 87(2)(g)**).

§ 87(2)(b) requested business cards on scene and Sgt. Hanisch, PO Koncelik, PO Mendoza, PO Martinezgarcia, and PO Samuels failed to provide one (**Allegations C – F: Abuse of Authority, § 87(2)(g)**) (**Allegation G: Abuse of Authority: Miscellaneous – § 87(2)(g)**).

At the 73rd Precinct stationhouse, § 87(2)(b) was issued three summonses: § 87(2)(a) 160.50

The investigation is in possession of ten BWC videos pertaining to this incident (**BRs 02 – 11**). The investigation is in possession of no additional video.

§ 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Karl Hanisch stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that officers stopped § 87(2)(b)'s vehicle as part of a vehicle safety checkpoint.

The investigation obtained the vehicle checkpoint form that confirms a vehicle safety checkpoint at the date, time, and location of this incident was approved and authorized by Deputy Inspector Mark Vazquez of the 73rd Precinct (**BR 12**). The form noted that every vehicle is to be stopped and that the supervisor has discretion if there is unmanageable traffic congestion.

Patrol Guide Procedure 221-16 (BR 13) defines a vehicle checkpoint is a temporary site on a roadway that impedes the normal flow of traffic for the systematic stop and inspection of driven vehicles. A checkpoint permits officers to stop vehicles, request the driver's license, registration, and insurance card, and run a check on both the license and VIN.

§ 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation (B) Abuse of Authority: Police Officer Melanie Obrien searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) refused to provide his license to officers during the stop and that Sgt. Hanisch had him removed to the stationhouse in regard.

§ 87(2)(b) (BR 14) stated that when he told Sgt. Hanisch that he was not going to provide his license, Sgt. Hanisch told officers on scene to “lock him up.” Officers subsequently handcuffed § 87(2)(b). Officers then went into his vehicle to retrieve his license, which he did not give them permission to do. Officers transported § 87(2)(b) to the 73rd Precinct stationhouse.

Sgt. Hanisch (BR 15) testified that when § 87(2)(b) refused to provide his license to officers, he made the decision to arrest § 87(2)(b). He then testified that § 87(2)(b) was not arrested but simply removed to the stationhouse to be identified. He did not instruct any officer to search § 87(2)(b)'s vehicle for his license. Sgt. Hanisch instructed an officer take § 87(2)(b)'s vehicle back to the stationhouse because § 87(2)(b) refused to provide his license and the officers on scene were unable to determine whether § 87(2)(b) owned the vehicle that he was operating at the time. Sgt. Hanisch did not recall an officer looking for § 87(2)(b)'s license on scene. At the stationhouse, officers obtained § 87(2)(b)'s license and released him with a summons. He did not know how officers obtained § 87(2)(b)'s license.

In PO Obrien's BWC (BR 06) at 11:39, PO Mendoza asks § 87(2)(b) who is handcuffed, where his license is. § 87(2)(b) replies that it is in his wallet, which is in his bag, which is on the front seat of the car. At 12:15, PO Obrien opens the front passenger door of § 87(2)(b)'s vehicle and searches the bag on the seat. § 87(2)(b) does not provide consent prior to her doing so. She does not find his license.

PO Obrien (BR 17) testified that she entered § 87(2)(b)'s vehicle and searched the bag with the sole purpose of retrieving § 87(2)(b)'s license. She did not speak to § 87(2)(b) prior to doing so, nor was she instructed by anyone on scene to do so. She testified that she did not need consent to enter § 87(2)(b)'s vehicle because he had been arrested. She did not find § 87(2)(b)'s license in the bag. She did not drive § 87(2)(b)'s vehicle to the stationhouse.

A request for any property vouchers pertaining to this incident was returned with negative results (BR 25).

Patrol Guide Procedure 209-09 (BR 22) states that officers, when requesting proof of identity, are to remove violators to command for investigation if doubt concerning identity exists.

In *People v. Alston*, 9 Misc. 3d 1046 (BR 30), the court ruled that under the New York Vehicle and Traffic Law statutory scheme, failure to provide required documentation is presumptive evidence of the unlawful acts of driving without a license, registration, or proof of insurance and justifies summary arrest of the motorist.

Patrol Guide Procedure 218-19 (BR 26) states that whenever a vehicle comes into the custody of the police department, either as investigatory evidence or to determine the true owner, a thorough inventory search must be conducted. It directs officers to remove all valuables from the vehicle and prepare a separate invoice, and all property of little value should within reason be listed in the officer's memo book. A vehicle seized to determine the true owner may only be released upon proof of ownership of the vehicle.

In *People v Johnson*, 183 A.D.3d 1273 (**BR 31**), the court ruled that when police want to search a vehicle at the time they arrest its occupant, the police must not only have probable cause to search the vehicle but there must also be a nexus between the arrest and the probable cause to search.

§ 87(2)(b), § 87(2)(g)

BWC confirms that PO Obrien, who testified that she did not conduct an inventory search of § 87(2)(b)'s vehicle, searched § 87(2)(b)'s vehicle for his ID on scene. § 87(2)(b), § 87(2)(g)

Allegation (C) Abuse of Authority: Sergeant Karl Hanisch failed to provide § 87(2)(b) with a business card.

Allegation (D) Abuse of Authority: Police Officer Jeffrey Koncelik failed to provide § 87(2)(b) with a business card.

Allegation (E) Abuse of Authority: Police Officer Hernan Mendoza failed to provide § 87(2)(b) with a business card.

Allegation (F) Abuse of Authority: Police Officer Pedro Martinezgarcia failed to provide § 87(2)(b) with a business card.

Allegation (G) Abuse of Authority: Police Officer Tiery Samuels failed to provide § 87(2)(b) with a business card.

It is undisputed that § 87(2)(b) asked for “everyone’s” business card on scene.

At 12:03 in Sgt. Hanisch’s BWC (**BR 02**), after § 87(2)(b) is handcuffed, he says, “I’ll just take the business cards when you guys are done.”

§ 87(2)(b)'s request is consistently audible on BWC, including PO Koncelik’s (**BR 03**, at 11:28), PO Martinezgarcia’s (**BR 04**, at 11:45), PO Mendoza’s (**BR 05**, at 11:21), and PO Samuels’ (**BR 08**, at 11:45).

In PO Martinezgarcia’s BWC (**BR 04**), at 11:45, § 87(2)(b) is standing approximately ten feet away when he makes this request. PO Orhan, Sgt. Hanisch, PO Koncelik, PO Mendoza, and PO Samuels are all within ten feet of § 87(2)(b) when he makes this request. When § 87(2)(b) makes this request, nobody else is speaking concurrently nor is there any other activity occurring in the vicinity to cause noise.

In PO Orhan’s BWC (**BR 11**) at 5:54, PO Orhan provides § 87(2)(b) with a business card as he releases § 87(2)(b) from the stationhouse. He does not provide any other officer’s card.

Sgt. Hanisch (**BR 15**) testified that he did not provide § 87(2)(b) with a business card because he was not required to do so, as officers are never required to provide business cards to civilians who are under arrest.

PO Koncelik (BR 19) and PO Mendoza (BR 21) did not independently recall § 87(2)(b) requesting for a business card. They did not believe it was necessary for officers to provide business cards to civilians when they are under arrest.

PO Martinezgarcia (BR 20) testified that he did not hear § 87(2)(b)'s request for business cards because he was "too far away," from § 87(2)(b) and was "not paying attention," to what was happening. He was unable to say how far away he was from § 87(2)(b) or what he was focused on at the time.

The Department Advocates Office confirmed that PO Samuels retired from the NYPD on August 1, 2023 (BR 23).

Administrative Guide 304-11 (BR 24) states that officers are not required to offer business cards when a civilian is placed under arrest; however, it does require officers to provide business cards, as appropriate, at the request of members of the public.

A review of BWC footage confirms that at the time § 87(2)(b) requested business cards, nobody else was concurrently speaking nor was there any other police activity occurring in the vicinity. A review of PO Martinezgarcia's BWC confirms that PO Martinezgarcia was facing § 87(2)(b) standing about ten feet away, and was not saying or doing anything when § 87(2)(b) made this request. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to two CCRB complaints and named a victim in six allegations (BR 27).
 - § 87(2)(b)
 - § 87(2)(b)
- Sgt. Hanisch has been a member of service for eleven years and has been listed as a subject in one CCRB complaint and two allegations, neither of which were substantiated. § 87(2)(g)
- PO Obrien has been a member of service for two years and this is the first CCRB complaint in which she is listed as a subject. § 87(2)(g)
- PO Koncelik has been a member of service for thirteen years and has been listed as a subject in one CCRB complaint and three allegations, none of which were substantiated. § 87(2)(g)

- PO Martinezgarcia has been a member of service for two years and this is the first CCRB complaint in which he is listed as a subject. § 87(2)(g)
- PO Mendoza has been a member of service for sixteen years and has been listed as a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- PO Samuels was a member of service for seventeen years and was listed as a subject in eight CCRB complaints and eleven allegations, three of which were substantiated.
 - 200717482 involved substantiated allegations of refusal to provide name and a stop against PO Samuels. The Board recommended Charges and the NYPD imposed instructions.
 - 201804560 involved a substantiated allegation of discourtesy – word against PO Samuels. The Board recommended Formalized Training and the NYPD imposed instructions.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- On July 18, 2023, this complaint was sent to mediation and on September 6, 2023, this complaint was returned to investigation as it was no longer suitable for mediation.
- On February 20, 2024, a FOIL request for any Notice of Claim pertaining to this incident was filed with the Office of the Comptroller and will be added to the case file upon receipt (**BR 28**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RBPB History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 16

Investigator:	<u>Carter Garfield</u>	<u>SI Garfield</u>	<u>3/18/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>03/19/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date